

CASSATION & ECHR · 4 APR 2001

Cassation — order

TYPE	COURT	DATE	PARTIES
Court decision	The Court of Cassation	4 Apr 2001	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Order — Court of Cassation, Office of the First President · 4 April 2001

Overview: order made by Jean-Pierre Bouscharain, judge delegated by the First President of the Court of Cassation (France's highest court), on appeal to the Court of Cassation no. X 0014487 between McDonald's and Bernard Collorafi and the companies SEBOL, B et O and Les Pins.

Key points

The appeal concerns the judgments of the Paris Court of Appeal of 9 December 1998 and 8 March 2000, which ordered reciprocal payments. Claiming to be, after set-off, a creditor for a sum of 2,837,763.84 F, McDonald's France asks for the appeal to be removed from the Court's list. Mr Collorafi and the companies oppose this, arguing that enforcement of the judgment would have manifestly excessive consequences for them. The order notes that the companies Les Pins, SEBOL and B et O have had no activity since 10 June 1998, and that Mr Collorafi provides evidence of a declared income of 90,136 F in 1999 (88,353 F for his wife) and of a property encumbered by a mortgage in favour of McDonald's France. It concludes that there are no grounds for removing the appeal from the list.

Significance

This decision keeps the appeal to the Court of Cassation alive and rejects the application for removal, noting the franchisee's financially strained situation at the cassation stage.

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Source: bernardcollorafi.org/en/documents/order-court-of-cassation-refusal-removal-appeal-collorafi-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.